

Spring 2026 Philosophy of Law Syllabus

We will examine theories which attempt to provide answers to such questions as: What is a law? What makes a law valid or binding? Does one always have a moral obligation to obey the law? What gives society the right to punish people whose actions are harmful only to the individual, him/herself (paternalism)? Does society have the right to harm those who break the law (criminal punishment)? Should attempted crimes be punished less severely than completed crimes? We will not spend much time discussing specific public policy issues such as: Whether raising the drinking age saves lives, whether smoking marijuana is a victimless crime (whether it harms others), or whether the death penalty is a deterrent. We will not discuss what the law is; instead, we will discuss what the law ought to be.

Class Meeting Times

- Tuesdays and Thursdays
- 11:30am - 12:45am

Syllabus

Course Convenor

Dr. Monty Reynolds

mreynolds1@stetson.edu

Office Hours:

- When: TTH 1:00-5:00pm or by appointment
- Where: Elizabeth Hall 104
- How to book: Drop in, email, or book via [Microsoft Bookings](#)

Course Information

Required Texts:

Required: Handouts

Recommended: Feinberg, Joel, Jules L. Coleman, and Christopher Kutz, eds. *Philosophy of Law*. Eight edition, Student edition. Cengage, 2014.

Expectations:

Come prepared to engage with assigned readings in class, referencing specific passages as prompted by the instructor.

Bring physical or digital copies of readings to class for annotation and short reflections.

Submit all assignments via Canvas by the due date.

Active participation and regular attendance are essential for success.

Late Assignment Policy

Penalty: 10% deduction per day late.

Makeup Process: Email the instructor within 48 hours to arrange an extension. No credit if not submitted by agreed date.

Success: Active participation, timely submissions, and attendance are key.

Grading Calculation

Weekly Reflections: Each reflection is worth a possible total of 8 points. There are 12 possible reflections. I will only grade 8 or your best reflections.

Reflective Analysis 1 & 2 (160 points): Each reflective analysis is worth a possible total of 20 points per category, times 4 categories equals 80 points times 2 reflection pieces.

Essay 1 & 2 (80 points): Each Quiz is worth a possible total of 10 points per category, times 4 categories equals 40 points times 2 Quizzes.

Presentation: Your grade in this area depends on your preparation and participation in the DND class meetings. [We will use the dnd adventure sheet linked here to quantify participation.](#)

Students will be evaluated based on a total of 640 points, with the final grade determined by the percentage of points earned. The components are as follows:

For more detailed information regarding grades, [see the rubric here](#)

For more detailed information regarding the DND Adventures, [see the DND addendum here](#)

Attendance (5% of final grade, 32 points):

- Based on unexcused absences throughout the semester.

Grading Scale (equal increments of 8 points):

0–1	unexcused absences:	32 points
2	unexcused absences:	24 points
3–4	unexcused absences:	16 points
5–6	unexcused absences:	8 points
6	unexcused absences:	0 points

Course Schedule

Here is the syllabus formatted as a clean Markdown table using only the vertical line | as the separator (with a properly spanned title row):

Day	Date	Discussion
Tuesday	January 13	Introduction to Philosophy of Law and Organization of Class
Thursday	January 15	Fuller, “The Case of the Speluncean Explorers” (Handout - Canvas)
Tuesday	January 23	Kretzmann, “Lex Iniusta Non Est Lex: Laws on Trial” (Handout – Canvas)
Thursday	January 25	Bentham, “The Principles of Morals and Legislation” (Handout – D2L)
Tuesday	January 30	Bentham (Continued)
Thursday	February 1	Hart, “Law as the Union of Primary and Secondary Rules” (crc, 53)
Tuesday	February 6	Hart (Continued)
Thursday	February 8	Dworkin, “The Model of Rules” (148)
Tuesday	February 13	Dworkin, “Integrity in Law” (169)
Thursday	February 15	Holmes, “The Path of the Law” (197); Frank, “Legal Realism” (205)

Day	Date	Discussion
Tuesday	February 20	Critical Legal Studies (Handout – D2L)
Thursday	February 22	Plato, Crito (Handout – D2L)
Tuesday	February 27	Crito (Continued)
Thursday	March 1	Wrap-up Part 1
Tuesday	March 6	Examination 1
Thursday	March 8	Hart, “Postscript: Responsibility and Retribution” (317)
Tuesday	March 13	Duff, “Choice, Character, and Action” (328)
Thursday	March 15	Parker, “Blame, Punishment and the Role of Result” (Handout – D2L)
Tuesday	March 20	Spring Break
Thursday	March 22	Spring Break
Tuesday	March 27	Self Defense (Handout – D2L)
Thursday	March 29	Self Defense (Continued)
Tuesday	April 3	Excuse, Justification, Subjective/Objective Liability (Handout – D2L)
Thursday	April 5	Mill, “On Liberty” (258)
Tuesday	April 10	Dworkin, “Paternalism” (271); Griswold v. Connecticut (summary on www)
Thursday	April 12	Devlin, “Morals and the Criminal Law” (283)
Tuesday	April 17	“The Moral Significance of Terrorism” (Handout – D2L)
Thursday	April 19	Dershowitz, “Should the Ticking Bomb Terrorist be Tortured” (Paper Due at End of Class)
Tuesday	April 24	Bork, “The Original Understanding” (Handout – D2L)
Thursday	April 26	Bork (Continued)

Day	Date	Discussion
Tuesday	May 1	TBD – Student Input Requested
Thursday	May 3	Wrap-Up and Review

Final Examination: Tuesday, May 8th, 10:00 – 11:50

Grading Calculation

Total Points: 640 points, distributed as above.

Letter Grade:

Final grade uses the following scale (no rounding):

Letter Grade	Percentage
A+	97–100%
A	93–96%
A-	90–92%
B+	87–89%
B	83–86%
B-	80–82%
C+	77–79%
C	73–76%
C-	70–72%
D+	67–69%
D	63–66%
D-	60–62%
F	<60%

Example: Perfect scores = 32 + 160 + 160 + 80 + 80 + 96 + 32 = 640 points (100%, A+).

University Supports and Policies

Please Note: Oral appeals for grade changes are NOT accepted. If you feel that you have an extremely strong case for a grade change, you may submit a one-page essay explaining your reasons to me within one week of your work being returned.

A.Honor Code: University rules concerning scholastic dishonesty will be strictly followed. Any attempt at academic cheating will be referred to the Honor Council. I expect you to abide by the Honor Code that we have adopted here at Stetson. Please sign all work “Pledged, your name.” University rules concerning scholastic dishonesty will be strictly followed. As a community of

intellectual inquirers, we are all committed to academic integrity and honesty. The Stetson University Student Government Association, on its own initiative, recently drafted a proposal for an honor code, a powerful statement of the student body's commitment to this community of honor and integrity. For this reason, all work that you turn in must be your own. Any contribution from others must be clearly acknowledged. Unauthorized assistance on exams (take-home as well as in-class), research papers, or projects can be neither given nor received. The University has fully endorsed its honor system and abides by its precepts. If you have questions regarding the method/procedure for citing the work of others, please feel free to consult us.

The Department of Philosophy expects academic honesty of all students; we expect all students to abide by Stetson's honor code and to adhere to the honor system. Academic dishonesty includes, but is not limited to, altering or misusing documents, plagiarizing, misrepresentation, knowingly providing false information, colluding, and other forms of cheating. Students should read and follow Stetson's definitions and policies on 'Academic Honesty,' the honor code, and the honor system in Connections: The Campus Life Handbook and Calendar. It is the student's responsibility to be familiar with these definitions and policies; ignorance of them is not an acceptable excuse for violating them. Cases of suspected academic dishonesty, including plagiarism, will be referred to the Academic Honor Council, as per departmental policy. The honor code can be found online at the following address:<http://www.stetson.edu/honorsystem/>
<http://www.stetson.edu/honorsystem/>

B. Assignment standards: Late Work: All assignments must be handed in on time: late work will be docked a half-letter grade per day unless you get my approval for an extension before the due date. (Student athletes and others on school business: please, be advised to turn your assignments in BEFORE you leave, not after you return). No make-up exams or quizzes will be given without documented University accepted excuse (and they will differ from the ones given in class). This includes group quizzes.

C. Accommodation: Writing Center: Many students experience difficulty writing research papers. For that reason, Stetson University supports a Writing Center, located on the Second Floor of the Library. I have found that one or two visits to the Writing Center can make a tremendous difference in the quality of a paper. If you find that you have trouble with your written assignments, I strongly encourage you to seek the help of the Writing Center. The Academic Success Center provides academic and disability resources for all Stetson University Students. Students who anticipate barriers related to the format or requirements of a course should meet with me to discuss ways to ensure full participation. If disability-related accommodations are necessary, please register with the Academic Success Center (386-822-7127; www.stetson.edu/asc). You and I, and the ASC, will plan how best to coordinate accommodations. Sheridan's writing center hours: W 2-6, F 12-3.

The ASC also coordinates free tutoring on campus for students. You can meet

with a tutor to review principles, learn content-specific study strategies, and enhance content area knowledge. To review the tutoring options available and schedules, please see our website www.stetson.edu/asc/tutoring/php.

2.Counseling: Counseling: College can be extremely stressful for students, especially if this is the first time you've been away from home for an extended period of time or if there are other pressures that you are facing. For this reason, you may find it helpful to consult the University Counseling Center. Here is their contact information:

Phone number: 386-822-8900

Location: The office is located in Griffith Hall

Office hours: Weekdays from 8:00 a.m. to 4:30 p.m.

If a student experiences a mental health emergency after hours, they can simply call Public Safety (386-822-7300) and ask to speak with the on-call counselor.

We are staffed with qualified professional counselors who are trained to support and guide students through difficult transitions, experiences, and feelings.

Counseling is confidential and free of charge for all currently enrolled Stetson University students.

If experiencing a mental health crisis, you may also call 386-822-8740 to be connected to Volusia County Crisis Response Team: If having thoughts of harming yourself or others, select option one. For all other mental health needs select option nine.

For medical emergencies call 911.

Schedule of Readings/Assignments: subject to change as needed, it is YOUR responsibility to regularly check blackboard for announcements.

Students are required to check their Stetson email and Canvas accounts frequently, daily if possible. Do not use technology as an excuse for not completing an assignment/quiz or for submitting an assignment/quiz late or improperly. Late assignments/submissions are not accepted.

All students will be asked to verify in an online quiz that they agree and will abide by the procedures and policies presented in this syllabus. If you do not feel you can abide by the course rules, please drop the course.

Any recordings of this class (audio, video, or otherwise) may ONLY be used for personal academic use. Recordings may NOT be shared with other people without written consent from the professor. The information contained in recordings constitutes intellectual property and is protected under federal copyright laws. This information may NOT be published or quoted without the express written consent of the professor and without giving proper identification and credit to the professor. Recordings of this class may not be used in any way against the faculty member, teaching assistant, other lecturer, or students whose classroom

comments are recorded as part of the class. Violation of these stipulations will result in being reported to the Office of Community Standards.

D. Food Insecurity: At Stetson University, we are committed to supporting students' well-being, including ensuring access to nutritious food. If you are experiencing a lack of access to safe and nutritious food, the Hatters Helping Hatters Food Pantry is here to help. The Food Pantry is a free, no-questions-asked supplemental food resource for all Stetson students, staff & faculty. Food Pantry location:

- Carlton Union Building (CUB 278), open 24 hours.